Medicaid, ICE and Palantir

A bounded evidence brief, atomic claim ledger, and targeted records-request draft

Finding: The reviewed record contains a sworn account of Databricks processing and a quoted government discovery response identifying sharing with the ELITE Team and Palantir. It does not establish that this exact dataset entered ELITE, drove an enforcement action, or was comprehensively purged. [S1-S3]

Case: State of California v. U.S. Department of Health and Human Services, No. 3:25-cv-05536-VC (N.D. Cal.). **Dataset:** the HHS/CMS Medicaid file ICE received January 7, 2026. **Ledger item:** MED-2026-0107.

What this pass completed

Work product	Result
Primary-source check	Read the Briseno and Rich declarations; visually inspected the one-page Teams exhibit. Kept official representations distinct from independently measured events. [S1-S3]
Deletion sequence	The February 24 chat discusses reducing duplicates and retaining controlled copies. One message entertains a Palantir copy; a later clarification specifies one retained ERO copy. These are messages, not an audit of completed deletions. [S3]
Later-record check	Read the July 16 plaintiffs' opposition. An official Oregon DOJ tracker identifies a September 8 order; the order's contents and the full later docket remain unverified here. [S4, S6]
Next acquisition step	A dataset-specific request for existing ICE records is drafted on page 4. It seeks identifiers and handling metadata rather than beneficiary medical records.

Scope and interpretation

This is a review of enumerated records, not a complete docket audit or a finding of misconduct by a court. No inference of operational use follows merely from contractor access. Briseno's enforcement-use denial and the later-copy issue are both preserved. A missing public log is an unresolved question, not evidence that the activity occurred.

Research date: October 16, 2026. Document dates and underlying event dates are separated in the ledger. Source receipts and local-file hashes appear on page 5. The request remains a draft; no external submission is represented.

Claims and counterevidence

Each proposition below concerns what a record states. No row treats the underlying event as independently audited merely because it appears in a declaration. Update state for this item: **New**. The source key supplies the primary URL and raw receipt. [S1-S4]

Claim / actor / dates	Narrow proposition and status	Source / counterevidence / missing link
C01 / ICE Event: Jan. 7, 2026 Filed: Apr. 9, 2026	Briseno states ICE received the HHS/CMS matches. **Established record of sworn representation.**	S1, PDF p. 2, para. 10. Receipt logs and file identifiers were not inspected. Cluster: BRISENO-155-4.
C02 / ICE Event: after receipt; exact load time unstated Filed: Apr. 9, 2026	Briseno states ICE loaded the HHS data into Databricks. **Established record of sworn representation.**	S1, PDF p. 2, para. 11. He distinguishes engineering access from officer access. Import logs would independently test the account. Cluster: BRISENO-155-4.
C03 / ICE Event: after receipt; exact time unstated Filed: Apr. 9, 2026	Briseno states normalization began. **Established record of sworn representation.**	S1, PDF p. 3, para. 12. No job history or output lineage inspected. Cluster: BRISENO-155-4.
C04 / HSI; ELITE Team; Palantir Sharing date unstated Response: July 2, 2026 Filed: July 16, 2026	Rich quotes defendants' response identifying Teams sharing. **Established record of a quoted government admission.**	S2, PDF p. 2, para. 4. A team name is not proof of import into its application. Need attachment IDs, recipient/access records, and lineage. Cluster: DISCOVERY-182.
C05 / ICE As asserted Apr. 9, 2026 Filed: Apr. 9, 2026	Briseno denies operational-system ingestion and law-enforcement use. **Official representation / counterevidence.**	S1, PDF p. 3, para. 14. Do not discard this denial. Query-to-lead-to-case records would test operational use. Cluster: BRISENO-155-4.
C06 / ICE Confirmation: Mar. 30, 2026 Filed: Apr. 9, 2026	Briseno reports deletion of the file and Databricks copy, with no retained derivatives in ICE holdings. **Official representation.**	S1, PDF p. 3, para. 16. Later-copy reporting narrows reliance on a comprehensive purge claim; underlying later declaration was not inspected. S4, PDF p. 11. Clusters: BRISENO-155-4; LATER-COPIES.
C07 / chat participants; names redacted Chat: Feb. 24, 2026 Filed: July 16, 2026	The exhibit contains deletion instructions and a changing controlled-retention discussion. **Established exhibit content; completion unknown.**	S3, sole PDF page, 10:06-10:23 messages. Do not treat the earlier Palantir-copy suggestion as the final instruction or a completed act. Need approvals, inventory and deletion receipts. Cluster: DISCOVERY-182.

Dependence: S2, S3 and the sharing passage in S4 concern the same discovery exchange. Repetition in S4 or NPR is not a separate technical confirmation. S4's later-copy account cites ECF 181-1; this review has not substituted that description for a direct inspection of ECF 181-1.

What would answer each question

Question	Existing records to seek / likely custodian	What would resolve it
Who actually received or downloaded the file?	Attachment/file IDs, Teams and underlying SharePoint/OneDrive audit records, access grants, download events, sharing messages. ICE HSI COT/OSDM, Innovation Lab, ERO and agency-controlled contractor records.	Match the January 7 file or a traceable derivative to a recipient and an access event. A chat membership list alone establishes neither download nor use.
Did this exact file enter ELITE or another operational tool?	Import manifests, staging tables, job runs, lineage, transformation history and contractor tickets. ICE system/data owners and agency-controlled records of Palantir work.	A dataset identifier tied through lineage to a successful import into a named application. General product capability or contract scope is insufficient.
Did it affect enforcement?	Query logs, lead provenance, export history, human-review records and redacted case references tied to the dataset.	A trace from these records to a lead and an identified attempted or applied enforcement action. Access, a query, a lead, and a completed action remain separate stages.
What was deleted, and what remained?	Copy inventories, retention approvals, deletion tickets/logs, verification results, backup/cache/derived-data disposition, and search methodology.	A scoped accounting of identified copies and systems, dates and methods, retained exceptions and remaining limits. Do not label it universal proof that no copy exists anywhere.

How to record a result

Supported: cite the record and exact narrow proposition it resolves. **Contradicted:** identify the incompatible record and the scope of the contradiction. **Unresolved:** state the missing record and retrieval attempted. If an agency finds no responsive records, retain its search terms, systems, custodians, date coverage and explanation of retention limits before treating that response as negative evidence.

Keep the lifecycle local to each act

A deletion request is a decision or instruction; a deletion log concerns an attempted or applied act; verification concerns the result. An import, a generated lead, and an enforcement action each need their own executor, date and evidence. The February chat and the March deletion representation concern different times. Their language alone does not establish perjury or operational use.

Small amendment to the research protocol

Add **record_needed, custodian, dataset_identifier, date_range, retrieval_route, closure_test, search_coverage, disposition, as_of** to each missing-link entry. Permit frozen cards to change for factual correction or material counterevidence as well as lifecycle changes. Keep any later functional comparison or fictional adaptation downstream of the frozen factual row.

READY-TO-REVIEW DRAFT / NO SUBMISSION MADE

Targeted ICE records request

To: U.S. Immigration and Customs Enforcement, FOIA Office
Subject: Existing records identifying access, processing and deletion of the January 7, 2026 HHS/CMS Medicaid dataset

Under the Freedom of Information Act, I request existing agency records dated January 7 through October 16, 2026, concerning the HHS/CMS Medicaid data received by ICE on January 7, 2026, as identified in California v. HHS, No. 3:25-cv-05536-VC, ECF 155-4, paragraphs 10-16, and ECF 182-1, paragraph 4. Include records of identifiable copies or derivatives and any retransmission of that same dataset during this period.

I seek the following categories, limited to that dataset:

1. Identification and transfer. Existing filenames, hashes, file/object/table identifiers, schemas and field names; version and lineage records; transfer receipts; Teams message or attachment identifiers; and audit records of sharing, access grants, downloads or exports. Please include available records in the underlying file-storage service as well as Teams.

2. Processing and operational routing. Existing Databricks ingestion and job records, relevant staging/output identifiers, transformation histories, import manifests, and work tickets showing whether these data or identifiable derivatives were imported, indexed, queried, joined, exported, or made available to ELITE or another ICE operational application.

3. Use. Existing records associating the dataset or identifiable derivatives with generated leads, searches, human reviews, case references or enforcement actions. Redacted references or technical provenance are sufficient; I do not request beneficiary-level medical or personal information.

4. Retention and deletion. Existing copy inventories; quarantine and access-restriction records; retention approvals; deletion instructions, tickets, logs, attestations and verification results; and records describing the treatment of staging data, derivatives, caches and backups. Include the February 24, 2026 Teams discussion reproduced in ECF 182-2 (DHS_PI0002) and any existing follow-up approvals or records implementing those instructions.

Please search reasonably likely custodians, including HSI Cyber and Operational Technology / Operational Systems Development and Management, the HSI Innovation Lab, relevant ERO and ELITE personnel, and agency records maintained by contractors to the extent subject to ICE's control. This request does not ask a private contractor directly to disclose private records.

For any search or deletion verification, please provide existing records describing systems searched, search terms or identifiers, custodians and date coverage, technical limitations and retained exceptions. I request records, not a new analysis or an answer to a questionnaire.

Please provide reasonably segregable nonexempt portions, identify grounds for withholding, and release records electronically in existing searchable/native form where available. If the scope needs refinement, please identify the specific difficulty and propose a targeted narrowing. Please notify me of any assessable fees before incurring them; I am not authorizing fees without further written agreement.

Before submission: add the requester's chosen name and delivery contact, date the request, and verify the current ICE submission route through the official FOIA.gov agency directory. [S7] No signature, identity, payment commitment or external communication has been supplied by this draft.

Records behind the brief

S1 - Briseno declaration
ECF 155-4; filed April 9, 2026; PDF pp. 2-3, paras. 10-16. Primary sworn declaration. Read the saved court PDF; link opens the case docket. Open source.

S2 - Rich declaration
ECF 182-1; filed July 16, 2026; PDF p. 2, paras. 3-4, and pp. 2-3, paras. 5-6. Primary sworn declaration quoting discovery and counsel's correspondence. Read the saved court PDF. Open source.

S3 - Teams exhibit DHS_PI0002
ECF 182-2; filed July 16, 2026; sole PDF page. Primary produced exhibit; rendered and visually inspected. Read with Rich para. 3 for provenance. Open source.

S4 - Plaintiffs' opposition
ECF 182; filed July 16, 2026; relevant PDF pp. 9-11. Party advocacy quoting or characterizing underlying declarations; not a judicial finding. Public PDF inspected. Open source.

S5 - NPR reporting by Jude Joffe-Block, via GPB
July 17 report, July 18 update; the GPB page displays July 18, 2026. Secondary report carries Palantir's purge statement. Not a separate technical audit. Open source.

S6 - Oregon DOJ federal litigation tracker
Official institutional characterization: Medicaid case entry identifies an order dated September 8, 2026. Used as a retrieval lead; the order itself has not been inspected in this pass. Open source.

S7 - FOIA.gov FAQ and agency directory
Official request guidance: reasonably describe existing agency records; agencies need not create records or conduct new research. Accessed October 16, 2026. Open source.

Integrity receipts for locally inspected originals

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S1 / SHA-256 / 262,752 bytes
80dee6910a3bc9108d49405da6f1fca1
4c2071f59f2c4e98044e058131ae7086

S2 / SHA-256 / 141,155 bytes
84c9f88da00a51d9483b3a9c7843b073
7bf0925fb516fdc8c4863907e19db487

S3 / SHA-256 / 193,016 bytes
f8be74920963d85b6851f583932d502a
d6f2c853f92dbca8ac56c127548d5d6a
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Coverage and outstanding retrieval

Searches covered public case indexes, agency pages, the available court PDFs, NPR reporting and an official state litigation tracker. The Clearinghouse narrative ends with an April 2026 update; it is not evidence that later filings do not exist. Direct full-docket access was unavailable. ECF 172-1, 180, 181-1 and the September 8 order remain follow-up targets. No current legal status or complete deletion finding is inferred from an index or search silence.

All source access and local hash calculations: October 16, 2026. Hashes identify these copies; they do not independently authenticate the origin or truth of their contents. No broader allegation is established by this dataset-specific review.